Showing contexts for: **maintenance Section 125 CrPC** in Xxxxxxxxxxx vs Xxxxxxxxxxx on 24 March, 2026

Context size: Small | Current | Large | Larger

3. Learned counsel for the husband submits that marriage of the parties was solemnized on 29.06.2020 according to Hindu rites and ceremonies in compelling circumstances, when husband was only 16 years 04 months of age while the wife was 25 years old. No child was born out the wedlock, though the marriage was consummated. A petition under **Section** 3 of the Prohibition of Child Marriage Act, 2006 for annulment of the child marriage was filed before learned Principal Judge, Family Court, Faridabad on 21.01.2023, whereafter the wife filed the application under **Section 125** Cr.P.C. for **maintenance**, after three years of living separately. It is urged that the husband was only 22 years old, student of electrical engineering. His family was Antyodaya family entirely dependent on widow pension HARPREET SINGH CHAUHAN 2026.03.25 18:19 I agree to specified portions of this document CRR(F)-471-2026 (O&M) (₹3,000/-) of mother of the petitioner. The wife failed to prove that the husband was earning. She was not destitute and was living with her parents and four brothers, who were all earning hands. Thus, the award of ₹2,500/- per month deserved to be set aside.

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5. The aforesaid position was highlighted in Savitaben Somabhai Bhatiya V. State of Gujarat (2005) 3 SCC 636 : (AIR 2005 SC 1809).

6. In Shamima Farooqui vs. Shahid Khan 2015 5 SCC 705, Hon'ble Supreme Court of India observed that the inherent and fundamental principle behind **Section 125** Cr.P.C. is the amelioration of the financial state of affairs as well as the mental agony

and anguish that a woman suffers when she is compelled to leave her matrimonial home. It was further observed that, as per law, she is entitled to lead life in a similar manner as she would have HARPREET SINGH CHAUHAN 2026.03.25 18:19 I agree to specified portions of this document CRR(F)-471-2026 (O&M) lived in the house of her husband and as long as she is held entitled to grant of **maintenance** within the parameters of **Section 125** Cr.P.C., it has to be adequate so that she can live with dignity. Lastly, it was noted that, a plea is sometimes advanced by the husband that he does not have the means to pay as he does not have a job or his business is not doing well, but these are only bald excuses and, in fact, they have no acceptability in law as a husband, who is healthy, able-bodied and in a position to support himself is under a legal obligation to support his wife and her right to receive **maintenance** under **Section 125** Cr.P.C., unless disqualified, is an absolute right.